KASHRUT COURSE AT TIFERET EYAL

Why Wait Six Hours? Milk and Meat Before Shavuot

Kashrut Course, Part 3

Series: Kashrut, a six-part course at Tiferet Eyal, Hendon **Shiur:** Part 3 of the six-part Kashrut course, given by Dayan Daniel Kada at Tiferet Eyal, Tuesday 28 May 2019 (a week and a half before Shavuot)

These notes are based on an automatic transcript of the recording.

Introduction: Why Now?

After two shiurim on the ideas behind kashrut (its reasons, then vegetarianism), this shiur moved on to the practical halachot. The timing was deliberate: Shavuot was a week and a half away. On Shavuot there is a mitzvah to eat meat, as on every Chag, and also a **minhag** to eat dairy, so questions about meat and milk come up constantly.

Recap: four reasons for the prohibition

Meat on its own is permitted and dairy on its own is permitted. Why forbid them together? From the first shiur:

Source	Reason
Sefer HaChinuch	Two **disparate forces** that must not be combined, like **sha'atnez** (wool and linen) and **kilayim** (grafting fruits)
Ramban	**Cruelty**: cooking a kid in its own mother's milk. Every animal can be seen as a mother and every animal as someone's young, so it extends to all meat and milk
Rashbam (Rashi's grandson)	**Gluttony**: mixing meat with the very substance that gave the animal life and nourishment
Rambam	(1) **Unhealthy**; and (2), his preferred reason though he is not certain of it, it was a **pagan practice**, and the Torah weans us away from idolatry towards *Yichud Hashem*, as with tattoos, rounding the corners of the head and shaving with a razor

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Part 1: Three Verses, Three Prohibitions

The Torah repeats the same five words **three times**, in **Parashat Mishpatim**, **Ki Tisa** and **Re'eh**:

לֹא תְבַשֵּׁל גְּדִי בַּחֲלֵב אִמּוֹ Do not cook a kid in its mother's milk.

From this the Hachamim learn **three separate Torah prohibitions**:

1. **Eating** meat and milk cooked together.
2. **Cooking** meat and milk together, even with no intention of eating it.
3. **Benefiting** from meat and milk cooked together, even by someone else: you may not **buy or sell** it, and you may not even feed it to your animals.

The prohibition on benefit and on cooking is just as much from the Torah as the prohibition on eating, "which we would never consider doing."

Why it matters what is Torah and what is rabbinic

In principle: the Rambam writes that someone who teaches publicly that a rabbinic prohibition is from the Torah transgresses the negative commandment of **not adding to the Torah** (*bal tosif*). The Hachamim had the right to add their enactments only because they declared them rabbinic. This was the mistake in the story of Adam and Chavah: they added that one may not even **touch** the tree, when Hashem had only forbidden eating from it.

In practice, for meat and milk: the rabbinic extensions only forbid **eating**, not cooking or benefit. The Torah prohibition applies only to **domesticated animals** (*behemah*, like the *gedi*). Therefore:

- **Wild animals** such as **deer**, even if kosher, and **poultry** with milk are only rabbinically forbidden.
- One may **cook** them with dairy and **benefit** from them, for example by selling them.
- Strictly speaking one may even **cook chicken with milk in the same pot**, though for *mar'it ayin* (appearances) it is better not to. The problem with using your own pot is only that the walls absorb the taste. The act of cooking itself is not forbidden.

Part 2: Cooking

Cooking meat and milk together is forbidden by the Torah regardless of whether anyone will eat it.

What counts as cooking?

- **Boiling, frying, barbecuing, roasting**: all forms of cooking with fire are forbidden by the **Torah**.
- **Smoking** or **salting** meat and milk together: after much discussion, the conclusion is that this is forbidden only **rabbinically**.

Microwaves: Rav Moshe Feinstein and Chacham Ovadia Yosef

When microwaves appeared, there was a major debate, with **Rav Moshe Feinstein** and **Chacham Ovadia Yosef** in the two main camps.

To understand it, the Rabbi recalled a point from his Hilchot Shabbat series: **one may cook in the sun on Shabbat**, for example by putting an egg out in the sun. The Rishonim give two reasons:

1. It is **not the normal way** of cooking.
2. Cooking **by definition means by fire**; heat without fire is not cooking.

	Rav Moshe Feinstein	Chacham Ovadia Yosef
Follows reason	1: it depends on what is normal	2: cooking means fire
Microwave	It is **the normal way of cooking today**	It uses radiation, **not fire**
Meat and milk in a microwave	**Torah prohibition**: no benefit, cannot even be fed to a dog	At most **rabbinic**

Chacham Ovadia discussed the **hot springs of Teveria**: the Mishnah in Chullin treats cooking meat and milk in them as rabbinically forbidden. He argued that a microwave is not even comparable, since the springs at least transmit heat. His conclusion: a microwave is at worst **rabbinic**, so if meat and milk were cooked together in one, one may still **benefit** from the food or give it to others.

(Asked about using one microwave for meat and milk at different times, the Rabbi said it would need kashering, something he would return to.)

Washing meaty and milky tablecloths together

May you put a meaty tablecloth and a cheesy tablecloth into the washing machine together? The poskim say there is **no problem at all**, even if heavily stained, for several reasons:

1. It is **not the way of cooking**.
2. There is almost certainly **sixty times** as much water as any residue.
3. The **cleaning agents** make it all inedible.

The au pair's pot

The Rabbi previewed the next shiur on a non-Jewish au pair cooking for you. Here is the reverse case: your au pair asks you to **switch on the stove** for her. You must **check what is in the pot**. If she has meat and milk together in it, lighting the fire makes **you** the one cooking meat and milk, which is a Torah prohibition. (Chicken, deer or other wild animals with dairy would not be a problem, as above.)

A Jewish chef in a non-kosher kitchen

To show the gravity of this prohibition: the halachah is that if someone needs the income and cannot find other work, a Jew may work as a chef **cooking non-kosher food, even pork**, for non-Jews. But he may **never cook meat and milk together**, because that act is itself forbidden by the Torah. "There's absolutely no way around that."

Part 3: Benefit

Since meat and milk cooked together are forbidden in benefit:

- You may not feed it even to **pets**. Even feeding a **stray dog** is discussed, and the conclusion is better not to, since the good feeling of having fed it may itself be a benefit.
- You may not even **burn** it to get rid of it, because that is further cooking. Even the ashes are forbidden in benefit.

All this applies only where a **Torah** prohibition was transgressed.

Part 4: Eating

The Torah uses the word ***tevashel*** (cook) for all three prohibitions. From this the Hachamim derive that the **Torah** only forbids eating meat and milk **that were cooked together**. A piece of cold cooked meat and a piece of cheese, eaten together in one mouthful, are **not** forbidden by the Torah. The Hachamim forbade them.

Twice and three times removed

The Hachamim then went further: after eating meat, one may not eat dairy **until the next meal**. Notice how far this is from the Torah:

Case	Distance from the Torah prohibition
Cold meat and cheese in one mouthful	Rabbinic: not cooked together
Dairy some hours **after** meat	**Twice removed**: not cooked together, and not even in the same mouth
Dairy some hours after **chicken**	**Three times removed**: poultry with milk is itself only rabbinic

"It's remarkable how people are so particular about this." Even people who are not observant of Shabbat often keep this.

Why wait? Rambam versus Rashi

	Rambam	Rashi
Reason	Meat gets **stuck in the teeth** and takes hours to dissolve	The **taste lingers** in the mouth and stomach
Chewed meat but did not swallow	Must wait	No need to wait
Swallowed meat without chewing	No need to wait	Must wait
False teeth	"Just change your teeth": milky teeth and meaty teeth	Must wait

Halachah: we follow **both** opinions. One must wait whether one chewed without swallowing or swallowed without chewing.

How long? There are really only two opinions

The Gemara says to wait from **meal to meal**. What does that mean?

- **The Rambam:** the time normally between one meal and the next, which is **about six hours** (*kemo shesh sha'ot*).

- **Tosafot:** nothing to do with time. Meat and dairy may not be eaten in the same meal. Once you finish, say Birkat HaMazon and rinse your mouth, you may start a dairy meal immediately.

	Rule
Shulchan Aruch (Maran), for Sephardim	Follows the Rambam: **six hours**
Rama, for Ashkenazim	Follows Tosafot: a new meal is enough, but the custom is to wait **one hour**

Where did three hours come from?

"There is no such opinion as three hours." The custom is not very old and hard to trace. One suggestion: some opinions (not ours) understand six hours as **seasonal hours** (*sha'ot zemaniyot*), the daylight divided into twelve. In summer six such hours can be about nine; in winter, much shorter, closer to three. Since three hours worked in winter, people reasoned it should work in summer too.

- **Ashkenazim** have a solid basis for **one hour**, though most will tell you they wait three or six, since later authorities pushed for the Rambam's view. If one's family tradition is longer, that is something else.
- **Sephardim** should follow the Shulchan Aruch: **six hours**. Many from India, Iraq and elsewhere have a custom of three hours, and that is fine, but the main halachah for us is six.

Leniencies within the six hours

- **"About six hours."** Chacham Ovadia notes the Rambam's word *kemo*, "about." Best to wait the full six, but if there is a need (you are in someone's house and are offered tea with milk), from **five and a half hours** it counts as six.
- **Doubt.** If you are unsure whether six hours have passed but clearly a long time has, you may be lenient, because a doubt in a rabbinic law is lenient.
- **Counting from when?** From when you **finished eating the meat**, not from Birkat HaMazon.

You said a berachah on dairy too soon

You made a coffee with milk, said the berachah, and then remembered you are still meaty. Should you drink?

Yes, take a sip. Saying God's name in vain is a Torah matter; waiting after meat is twice or three times removed from the Torah. The same applies to someone who made a berachah on meat during **the Nine Days** (only a minhag), and even on a **fast day**: take a sip and stop.

But this only applies to food that is **intrinsically permitted** and is only forbidden because of the timing. If the food itself is forbidden, even only rabbinically (for example, food cooked by a non-Jew, the topic of a later shiur), you do **not** eat it.

Children

- **Children** generally need only wait **one hour**, since the longer waiting periods are so far removed from the Torah. We should still educate them in self-control. For a **luxury** such as an ice cream, better to teach them to wait longer; for a necessity such as a cup of milk before bed, one hour is fine.
- From about a year before bar or bat mitzvah (**girls 11, boys 12**), start educating them towards six hours if possible.

- **Children under three** may be given dairy right after meat: just wipe their mouth and face in between.

The ill, nursing and pregnant women, and the elderly

Because "meal to meal" can be interpreted as one hour, in cases of need one may wait **one hour**:

- Someone who is **unwell**, not necessarily bedridden: a headache, feeling uncomfortable, and a dairy drink will help.
- A **nursing woman** who needs milk.
- A **pregnant woman** with a craving.
- **Elderly people**, who are generally considered in this category.

In such cases, eat something **pareve** in between and **rinse the mouth**.

Tasting, false teeth and braces

- **Tasting** without chewing or swallowing (for example tasting the *chamin* on Erev Shabbat) and spitting it out does **not** make you meaty. Rinse your mouth and continue with dairy.
- **False teeth and braces**: discussed extensively by the poskim. Taste is only transferred by heat, which does not happen in the mouth, so **one set is fine**. "You don't have to go and buy another one tonight."

Almond milk

In answer to a question, apparently about plant-based "milk" such as almond milk with meat: it is not dairy, but the Hachamim forbade it because it **looks like** dairy. If you cook such a dish, put **almonds next to it** to show what it is.

Part 5: The Challah in the Meaty Oven: *Notein Ta'am bar Notein Ta'am*

"The next point is going to do you a big favour in your life."

You bake challot in your **clean meaty oven** for Shabbat. They are sitting in your freezer. Can you now have them as a **cheese sandwich**?

This is **נ"ט בר נ"ט** (*notein ta'am bar notein ta'am*), a flavour twice removed:

1. An hour ago a steak was cooked in the oven. The **walls absorbed** its flavour: **flavour one**. That is why you may not cook something dairy in it.
2. You then bake something **pareve** in it. Whatever flavour passes from the walls into the bread is **flavour two**.
3. Flavour two may be eaten **with dairy**.

	Ruling
Ashkenazim	Only after the fact (*bedi'avad*)
Chacham Ovadia Yosef	Even **in the first instance** (*lechatchilah*) you may bake challah in the meaty oven intending to eat it with cheese
Ben Ish Chai	Stringent, but the main halachah is like Chacham Ovadia

And the reverse: pareve food baked in a **milky** oven may be eaten with meat.

But the oven must be clean. If there is actual meat residue, the bread takes flavour one directly from the meat and may not be eaten with dairy. "Clean" means **no visible residue**, not two hours on self-clean; "that's for Pesach." Bread that took its taste from actual meat has the taste of the meat itself (*ta'am ke'ikar*), and after eating it one would have to wait as after meat.

Part 6: Dairy on Shavuot

The custom of eating dairy on Shavuot is not mentioned before the **13th century**. Three reasons:

1. **New laws at Sinai.** When Bnei Yisrael received the Torah, all their pots became non-kosher, since until then they had been cooking without these rules, and they had no correctly slaughtered meat. So they ate dairy. Why not kasher the pots? Matan Torah was on **Shabbat**: they left Egypt on a Thursday, and seven weeks later was Shabbat.
2. **Torah is compared to milk**: "honey and milk under your tongue." Some also eat honey on Shavuot.
3. **The Shtei HaLechem** (the Rama). On Shavuot the Temple offering was **two loaves of bread** from the new wheat (on Pesach it had been barley). How does dairy recall two loaves? Because of the halachah that **bread on the table at a meaty meal may not then be used at a dairy meal**, and vice versa. If you eat a dairy meal with one loaf and then a meat meal, you need a **second loaf**, and so you have two loaves.

The same halachah applies on Shabbat: a **challah left on the table** during a meat meal cannot be taken the next day for a dairy picnic unless it was clearly set aside and wrapped, because meat has very likely touched it.

A Chassidic opinion

Some Chassidic works, including the **Noam Elimelech**, write that **on Shavuot one may eat dairy one hour after meat**, even for those who wait six hours all year, to accommodate the custom. The Rabbi mentioned it as an interesting opinion to be aware of, but "we don't follow this type of stuff."

Summary

- The Torah says *lo tevashel gedi bachalev imo* **three times**: three Torah prohibitions, on **eating**, **cooking** and **benefit**.
- Only **domesticated animals** with milk are forbidden by the Torah. Poultry and wild animals are rabbinic, forbidden only to eat, not to cook or sell.
- Microwave cooking: Torah-level according to Rav Moshe Feinstein, at most rabbinic according to Chacham Ovadia.
- Never cook meat and milk together, not even for a non-Jew or as part of a job. Check the au pair's pot before lighting the fire.
- Waiting after meat: **six hours** for Sephardim (from five and a half in case of need), **one hour** according to the Rama, with three hours a later custom. Count from when you finished eating.
- Children, the ill, nursing and pregnant women, and the elderly may wait one hour if needed.
- Bread baked in a **clean** meaty oven may be eaten with cheese (*notein ta'am bar notein ta'am*).
- Three reasons for dairy on Shavuot, including the Rama's *Shtei HaLechem*.

As you can see, there is a lot more to talk about. People study this for a year in kollel. But this is the basics.

Next shiur, after Shavuot (Tuesday 18 June): Tevilat Kelim, immersing utensils bought from a non-Jew.

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